

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

August 13, 2026

**Judge R. Shawn Nelson
Department C10**

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
10:00 a.m		
1	Farzan S. Rajput, M.D., Inc. vs. Newport Irvine Center, LLC	Attorney Gaddi Goren moves for pro hac vice admission. For the following reasons, the motion is GRANTED . Foreign attorney Goren's application is verified and complies with the requirements of California Rules of Court, Rule 9.40. (See ROA # 41 [Ver. App.]) The moving attorney to give notice.
1:30 p.m.		
1	Brower Law Group, APC vs. Dirks	Plaintiff Brower Law Group, APC's motion to compel Defendant Dwaine Dirks to serve verified responses to Requests for Production, Set One, and to produce documents without objection is GRANTED .

Defendant Dwaine Dirks is ORDERED to serve full, complete, and verified responses to this discovery and produce documents without objections and within 20 days of service of the notice of ruling of this order.

The court GRANTS Plaintiff's request for \$860 in monetary sanctions against Defendant Dwaine Dirks. Defendant Dwaine Dirks is ordered to pay Plaintiff Brower Law Group \$860 in monetary sanctions for the misuse of the discovery process within 30 days of service of notice of ruling of this order.

When a party properly propounds requests for production and the party receiving the requests fails to respond, "[t]he party making the demand may move for an order compelling response to the demand." (Code Civ. Proc., § 2031.300, subd. (b).)

Further, when the party receiving the discovery requests fails to respond, the propounding party is not required to file a meet and confer declaration prior to filing its motion to compel, and there is no time limit for the propounding party to file its motion. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404.)

By failing to respond, the offending party waives any objection to the interrogatory or protection demand, including one based on privilege or on the protection for work product. Code Civ. Proc., § 2031.300, subd. (a) (requests for production)).

Here, Plaintiff presents sufficient evidence to establish that Plaintiff served the discovery at issue on Defendant on April 28, 2026. (Declaration of John Kim., ¶ 4 & Ex. A). Plaintiff agreed to multiple extensions of time to respond. (Id., ¶ 6). Defendant, however, has failed to provide verified Responses or produce any documents.

For these reasons, the motion is GRANTED.

Plaintiff also seeks monetary sanctions in the amount of \$860.

The Civil Procedure Code requires the court to impose monetary sanctions against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.290, subd. (c), 2033.290, subd. (d)).

California Rules of Court rule 3.1348 further provides that "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

Here, Defendant's conduct necessitated the filing of this motion. Defendant has failed to show that Defendant has acted with substantial justification or

		that other circumstances make the imposition of the sanction unjust. The court, therefore, will grant Plaintiff's request for \$860 in sanctions. Moving party to give notice.
2		
3	Douglas vs. Regents of the University of California	Plaintiff Christopher Ryan Douglas moves to compel Defendant The Regents of the University of California ("Regents") to provide further responses to Plaintiff's requests for production of documents (set one) and Defendants Julius Edson and Daniela Bota to provide further responses to Plaintiff's special interrogatories (set one). For the following reasons, the motions are CONTINUED to October 29, 2026, at 1:30 p.m. in Department C10. The Court also CONTINUES the motions to compel set for August 20, 2026, to October 29, 2026, at 1:30 p.m. in Department C10. Plaintiff served the special interrogatories (set one) on Defendant Edson on January 17, 2026. (Douglas Dec., ¶ 8.) On February 17, 2026, Edson served responses. (Id. at ¶ 9.) Plaintiff served the special interrogatories (set one) on Defendant on January 13, 2026. (Douglas Dec., ¶ 7.) On February 17, 2026, Defendants served responses. (Id. at ¶ 10.) Defendant Regents filed a demurrer to the Second Amended Complaint ("SAC"), which is set for hearing on September 3, 2026. (ROA 285.) Defendant Regents also filed a motion to stay discovery, which is set for hearing on February 25, 2027. (ROA 347.) Defendant Navigate Biopharma Services, Inc. filed a demurrer to the SAC, which is set for hearing on September 17, 2026. (ROA 220.) And Defendant Apple Inc. filed a demurrer to the SAC, which is also set for hearing on September 17, 2026. (ROA 215.) Defendant Apple also filed a motion to stay discovery, which is set for hearing on October 15, 2026. (ROA 233.) Plaintiff's SAC is large. Excluding its exhibits, it contains 264 paragraphs spanning 84 pages. The exhibits add another 433 pages. (ROA 121.) And Plaintiff's separate statements do not comply with California Rules of Court Rule 3.1345. Pursuant to Rule 3.1345(c): A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference. The separate statement must include-for each discovery request (e.g.,

each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested-the following:

- (1) The text of the request, interrogatory, question, or inspection demand;
- (2) The text of each response, answer, or objection, and any further responses or answers;
- (3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute;
- (4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;
- (5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and
- (6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document.

Plaintiff filed two separate statements – one related to the special interrogatories (to multiple defendants), and one related to the inspection demands (to Defendant Regents). (ROAs 161, 165.)

Plaintiff's separate statements do not comply with Rule 3.1345. Plaintiff did not file a separate statement as to each Defendant and he did not clearly set forth each special interrogatory separately as required by Rule 3.1345.

Plaintiff should file an amended separate statement setting forth the text of each discovery request in numerical order, followed by each response. As it stands now, however, it is extremely difficult to determine how each Defendant responded to each discovery request and whether such responses are appropriate given the procedural posture of this case.

If Plaintiff intended to include Defendant Regents in the separate statement, Plaintiff shall do so.

Given that Defendants' pleading challenges will be heard by September 2026 and Defendant Apple has a motion for stay set for October 15, 2026, the Court hereby

1. continues the hearing on these motions to October 29, 2026 at 1:30 p.m. in Department C10,

		2. continues the hearing on the motions to compel set for August 20, 2026 to October 29, 2026 at 1:30 p.m. in Department C10, and 3. advances Defendant Regents’ motion to stay, which is currently set for hearing on February 25, 2027. (ROA 347.) That February 25, 2027 hearing date on Defendant Regents’ motion to stay is advanced to October 15, 2026 at 1:30 p.m. in Department C10 to be heard concurrently with Defendant Apple’s motion to stay. No further briefing shall be permitted on the motions to compel, except that Plaintiff shall file amended separate statements consistent with the above discussion, and Defendants may file separate statements in response thereto. Plaintiff shall file and serve notice of this ruling.
4	Adjemian vs. Gallo	Plaintiff Kevork Adjemian’s motion for protective order is GRANTED. The court awards Plaintiff sanctions against Defendant Rafael Gallo in the amount of <u>\$612.50</u>. (Code Civ. Proc. § 2033.080, subd. (d)). <u>Authority</u> A protective order may be obtained if the relief is sought “promptly”. (Code Civ. Proc. § 2033.080(a) [protective order for requests for admissions]). The burden is on the moving party to establish “good cause” for whatever order is sought. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255 (interrogatories); <i>Stadish v. Super. Ct.</i> (1999) 71 Cal.App.4th 1130, 1145 (document requests).) “Good cause” requires specific facts demonstrating unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (<i>Goodman v. Citizens Life & Cas. Ins. Co.</i> (1967) 253 Cal.App.2d 807, 819). <u>Merits</u> Plaintiff moves for an order excusing him from responding to Defendant Gallo’s fourth set of requests for admissions. Plaintiff sets forth the following in support of his contention that good cause requires this order: This case is based on the sale of certain real property by defendant Rafael Gallo to plaintiff Kevork Adjemian. As is alleged in the complaint, Adjemian purchased the property and, after doing so and taking possession discovered water intrusion below the exterior decks of the home and into the interior living space. Adjemian learned that Gallo had replaced the decks without permits and without the necessary waterproofing. Adjemian contends that these facts should have been disclosed to him but were not.

		(Decl. of Quinn, ¶ 1). On December 30, 2025, Gallo propounded his third set of requests for admissions by email on plaintiff. These requests took the total number of requests propounded to 666. (Decl. of Quinn, ¶ 2). After Plaintiff requested that they be withdrawn and Gallo refused, Plaintiff filed a motion for a protective order, which was granted on June 25, 2026. (Decl. of Quinn, ¶¶ 2, 3). On May 29, 2026, Gallo propounded his fourth set of requests for admissions on Plaintiff. This set took the total number of requests for admissions propounded by Gallo to Plaintiff to 739. Plaintiff requested that Gallo withdraw these requests, and Gallo refused. (Decl. of Quinn, ¶ 4). After this court granted the previous motion for protective order, Plaintiff again requested that the requests for admissions be withdrawn, and again, Gallo refused. (Decl. of Quinn, ¶ 4). As this court found in its previous ruling, 666 requests for admissions in a case relating to water intrusion following the sale of real property is grossly excessive. Likewise, the fourth set of requests for admissions is also grossly excessive. Defendant did not oppose, and, therefore, failed to justify why the fourth set of requests for admissions is necessary after Plaintiff has already responded to 400+ requests for admissions to date. Accordingly, the court GRANTS the motion. Plaintiff shall give notice.
5	The Standard Fire Insurance Company vs. KIA America, INC.	The Demurrer to Complaint brought by Defendant Kia America, Inc. is SUSTAINED, as to the Third and Fourth Causes of Action asserted by Plaintiff The Standard Fire Insurance Company (“Travelers”), without leave to amend. The sole issue raised within this demurrer is Plaintiff Travelers standing to pursue Song-Beverly claims. Initially, it is undisputed that Plaintiff Travelers does not, independently, have standing under the Song-Beverly Act: “The prerequisite for standing to assert statutorily-based causes of action are determined from the statutory language, as well as the underlying legislative intent and the purpose of the statute.” (<i>Boorstein v. CBS Interactive, Inc.</i> (2013) 222 Cal.App.4th 456, 466.) Pursuant to Civil Code section 1794, “[a]ny buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief.” (Civ. Code, § 1794, subd. (a).) Similarly, “[a]ny buyer of consumer goods injured by a breach of the implied warranty of merchantability,” has certain statutory remedies available. (Civ. Code, § 1791.1, subd. (c).) For purposes of these provisions, “buyer” means “any individual who buys consumer goods from a

person engaged in the business of manufacturing, distributing, or selling consumer goods at retail.” (Civ. Code, § 1791, subd. (b).)

The Song-Beverly Act is “manifestly a remedial measure, intended for the protection of the consumer; it should be given a construction calculated to bring its benefits into action.” (*Dagher v. Ford Motor Co.* (2015) 238 Cal.App.4th 905, 915.)

Per the Complaint, Plaintiff Sammy Maya purchased the relevant vehicle in California. (¶1, ¶4, ¶9, ¶57 and ¶68 of Complaint.) Plaintiff Travelers merely insured the vehicle. (¶2 and ¶21 of Complaint.)

Based on the above, Travelers is *not* a buyer for purposes of the Song-Beverly Act. Consequently, the question turns to whether Travelers could acquire the right to pursue Song-Beverly claims, via subrogation.

“Subrogation is the ‘substitution of another person in place of the creditor or claimant to whose rights he or she succeeds in relation to the debt or claim.’” (*Interstate Fire & Casualty Ins. Co. v. Cleveland Wrecking Co.* (2010) 182 Cal.App.4th 23, 31-32.) “In the case of insurance, subrogation takes the form of an insurer’s right to be put in the position of the insured in order to pursue recovery from third parties legally responsible to the insured for a loss which the insurer has both insured and paid.” (*Id.* at p. 32.) “The subrogated insurer is said to ‘stand in the shoes’ of its insured, because it has no greater rights than the insured and is subject to the same defenses assertable against the insured.” (*Ibid.*)

Relying on the above principles, Plaintiff Travelers asserts it has stepped fully into the shoes of Plaintiff Maya, such that it is entitled to the same Song-Beverly remedies that Plaintiff Maya would be entitled to.

Defendant, in contrast, asserts that Song-Beverly claims are not capable of subrogation.

In support of this assertion, Defendant cites *Dagher v. Ford Motor Co.* (2015) 238 Cal.App.4th 905, which addressed whether a buyer of a used vehicle obtained the right to assert Song-Beverly claims, via assignment pursuant to Civil Code section 954. (*Id.* at p. 925.) Per Civil Code section 954, “[a] thing in action, arising out of the violation of a right of property, or out of an obligation, may be transferred by the owner.” (Civ. Code, § 954.)

As noted by the *Dagher* Court, “[a] cause of action for breach of contract is an assignable right,” however, claims “founded upon wrongs of a purely personal nature, such as slander, assault and battery, negligent personal injuries..., malicious prosecution, and others of like nature,” are not transferable or assignable. (*Dagher v. Ford Motor Co.* (2015) 238 Cal.App.4th 905, 925.) Similarly, “damages for emotional distress or punitive damages are not assignable (because they are founded upon wrongs of a purely personal nature.)” (*Id.* at p. 926 [internal quotations cleaned up].)

Thereafter, the Court in *Dagher* explained: “Even though assignability of a claim is the rule, highly personalized rights of recovery are not assignable. [Citation]. Likewise, the [Song-Beverly Act] specifies in great detail those types of buyers and sellers who are subject to its provisions, and only those buyers and sellers can properly assert its protection.” (*Dagher v. Ford Motor Co.* (2015) 238 Cal.App.4th 905, 926.)

“Since the Act creates more and different statutory rights (e.g. implied warranties) than the express warranty contractual transfer could have conferred on Plaintiff, he would have to individually qualify under the Act’s definitions of buyer and seller and consumer goods, to assert those additional enforcement remedies.” *Dagher v. Ford Motor Co.* (2015) 238 Cal.App.4th 905, 926.)

In responding to *Dagher*, Plaintiff concedes this authority addresses assignment and transferability of Song-Beverly Act claims but nonetheless argues that subrogation substantially differs from assignment. (Opposition: 5:19-6:11.)

Similar to subrogation, however, “[t]he assignee ‘stands in the shoes’ of the assignor, taking his or her rights and remedies, subject to any defenses that the obligor has against the assignor prior to notice of the assignment.” (*Dagher v. Ford Motor Co.* (2015) 238 Cal.App.4th 905, 925.)

Additionally, case law makes clear that *assignability* is an element of equitable subrogation. Per *Fireman’s Fund Ins. Co. v. Maryland Cas. Co.* (1998) 65 Cal.App.4th 1279 (cited by Plaintiff), an essential element of “an insurer’s cause of action for equitable subrogation” is that “the insured has an existing, assignable cause of action against the defendant which the insured could have asserted for its own benefit had it not been compensated for its loss by the insurer.” (*Id.* at p. 1292.) Similarly, “[t]he right of subrogation is purely derivative” and “[a]n insurer entitled to subrogation is in the same position as an assignee of the insured’s claim....” (*Ibid.*; See also *Berg v. Pulte Home Corp.* (2021) 67 Cal.App.5th 277, 285, fn. 3 [listing assignability as an element of subrogation].)

Likewise, “it has long been held that subrogation is the equivalent of an equitable assignment.” (*Royal Indem. Co. v. Security Truck Lines* (1963) 212 Cal.App.2d 61, 64.)

Indeed, case law treats the concepts similarly: “While subrogation and assignment have certain technical differences, each operates to transfer from one person to another a cause of action against a third, and the reasons of policy which make certain causes of action nonassignable would seem to operate as forcefully against the transfer of such causes of action by subrogation.” (*Royal Indem. Co. v. Security Truck Lines* (1963) 212 Cal.App.2d 61, 64, quoting *Fifield Manor v. Finston* (1960) 54 Cal.2d 632.)

		Based on all the above, Song-Beverly claims cannot be transferred, assigned or subrogated and, consequently, Plaintiff Travelers lacks standing to assert the same. Moreover, leave to amend is denied: A court should sustain a demurrer without leave to amend where there is no “reasonable possibility that the defect can be cured by amendment.” (<i>Chiatello v. City and County of San Francisco</i> (2010) 189 Cal.App.4th 472, 480.) Additionally, leave to amend should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law. (<i>Lawrence v. Bank of Am.</i> (1985) 163 Cal.App.3d 431, 436.) 1. Motion to Strike The Motion to Strike brought by Defendant Kia America, Inc. is MOOT, given the accompanying order on the Demurrer. Case Management Conference is continued to November 19, 2026, at 09:00 am. Moving party to give notice.
6	Corey vs. The Regents of the University of California	Plaintiff Jacie Ruelas Corey’s motion for in camera review and to seal certain documents is DENIED in part. The court grants Plaintiff’s request for in camera review and has reviewed the documents lodged with the court with this motion in camera. The court will not entertain any further stand-alone requests for in camera review that is not specifically related to a pending motion. The court denies without prejudice Plaintiff’s request to seal and/or for a protective order as not ripe and procedurally improper. However, the court does not require Plaintiff to publicly file the documents lodged with the motion at this time and Plaintiff may withdraw the lodged material. Here, Plaintiff seeks to seal and issue a protective order over certain medical records and Plaintiff’s notes on said medical records. The motion is not tied to any pending discovery motion, a pending motion for which these documents must be filed as evidence, but sealed, etc. It appears that Plaintiff is seeking a blanket seal of these documents for any use in this case in the future. The court finds that Plaintiff has not provided a sufficient procedural or substantive basis to do so. “Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court, rule 2.550(c); <i>In re Marriage of Tamir</i> (2021) 72 Cal.App.5th 1068, 1079.) “A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (Cal. Rules of Court, rule 2.551(a).)

“A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (Cal. Rules of Court, rule 2.551(b)(1); see Cal. Rules of Court, rule 2.551(b)(2) [motion must be served on all parties]).

“If the court denies the motion or application to seal, the moving party may notify the court that the lodged record is to be filed unsealed. This notification must be received within 10 days of the order denying the motion or application to seal, unless otherwise ordered by the court. On receipt of this notification, the clerk must unseal and file the record. If the moving party does not notify the court within 10 days of the order, the clerk must (1) return the lodged record to the moving party if it is in paper form or (2) permanently delete the lodged record if it is in electronic form.” (Cal. R. Ct., rule 2.551(b)(6)).

The court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550(d); See also *Timothy W. v. Julie W.* (2022) 85 Cal.App.5th 648, 656.)

(1) If the court grants an order sealing a record and if the sealed record is in paper format, the clerk must substitute on the envelope or container for the label required by (d)(2) a label prominently stating “SEALED BY ORDER OF THE COURT ON (DATE),” and must replace the cover sheet required by (d)(3) with a filed-endorsed copy of the court's order. If the sealed record is in electronic form, the clerk must file the court's order, maintain the record ordered sealed in a secure manner, and clearly identify the record as sealed by court order on a specified date.

(2) The order must state whether--in addition to the sealed records--the order itself, the register of actions, any other court records, or any other records relating to the case are to be sealed.

(3) The order must state whether any person other than the court is authorized to inspect the sealed record.

(4) Unless the sealing order provides otherwise, it prohibits the parties from disclosing the contents of any materials that have been sealed in anything that is subsequently publicly filed.

(Cal. Rules of Court, rule 2.551(e).)

(1) An order sealing the record must:

(A) Specifically state the facts that support the findings; and

(B) Direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. All other portions of each document or page must be included in the public file.

(Cal. Rules of Court, rule 2.550(e).)

“While the findings may be set forth in cursory terms, ‘[i]f the trial court fails to make the required findings, the order is deficient and cannot support sealing.’ [Citation.]” (*In re Marriage of Tamir, supra*, 72 Cal.App.5th at p. 1079.)

Here, Plaintiff has not met this standard. Specifically, Plaintiff has failed to establish that no less restrictive means exist. There is no pending motion that requires Plaintiff to disclose any of this information. Plaintiff has not identified any pending discovery request or court order that requires such disclosure. Plaintiff’s complaint centers around information in the medical records. To the extent that Plaintiff relies on these medical records to establish Plaintiff’s case, Defendants would be entitled to review them to prepare for their defense. Further, Plaintiff failed to follow the procedural rules to seal and/or seek a protective order, particularly by failing to serve the moving papers on Defendants.

For these reasons, the motion is DENIED in part, without prejudice to Plaintiff meeting and conferring on a protective order with Defendant related to any medical records.

Moving party to give notice.